

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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PIERRE WOOD,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
GREGORY VASQUEZ, Shield No. 21626, POLICE
OFFICER FLAGUMY VALCOURT, Shield No. 6178,
SERGEANT DAVID GRIECO, Shield No. 18061, and
POLICE OFFICERS JOHN DOES #1-4 (names and
numbers of whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 21, 2020

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER GREGORY VASQUEZ, SHIELD NO. 21626, 67TH PCT
POLICE OFFICER FLAGUMY VALCOURT, SHIELD NO. 6178, 67TH PCT
SERGEANT DAVID GRIECO, SHIELD NO. 18061, 67TH PCT

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

PIERRE WOOD,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
GREGORY VASQUEZ, Shield No. 21626, POLICE
OFFICER FLAGUMY VALCOURT, Shield No. 6178,
SERGEANT DAVID GRIECO, Shield No. 18061, and
POLICE OFFICERS JOHN DOES #1-4 (names and
numbers of whom are unknown at present),

Defendants.

INDEX NO.:**VERIFIED COMPLAINT****JURY TRIAL DEMANDED**

Plaintiff PIERRE WOOD, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on October 23, 2018 at approximately 11:00 pm plaintiff was lawfully driving two college classmates home from a concert they attended at the Barclay's Center in Brooklyn, New York, and was lawfully driving in the vicinity of 3109 Clarendon Road, Brooklyn, New York when then individually named defendant police officers pulled plaintiff's vehicle over without reasonable suspicion or probable cause to believe plaintiff committed a crime or violated the law in any manner. The defendants unlawfully stopped, questioned, frisked, searched, and falsely arrested/ imprisoned plaintiff without probable cause or any legal justification. The defendant's also unlawfully searched plaintiff's vehicle without a legal basis to conduct the search, unlawfully seized plaintiff's vehicle, maliciously prosecuted plaintiff and denied plaintiff the right to due process and the right to a fair trial. At no time relevant herein did plaintiff violate the Vehicle and Traffic Law, commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner. Defendants initiated a criminal prosecution against plaintiff without probable cause by falsifying allegations against plaintiff and communicating the false allegations to the Kings County District Attorney's Office. The defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process and

the right to a fair trial. Plaintiff was unlawfully detained by defendants for 24 hours and 21 minutes before he was arraigned in Kings County Criminal Court and charged with several serious crimes he did not commit and that defendants lacked probable cause to accuse him of committing. Plaintiff was remanded into NYC Department of Correction custody at arraignment because he was unable to post bail, and he was unlawfully detained at the Brooklyn Detention Center for 4 days until he was released from custody. Plaintiff did not have a criminal record and had never been detained in a jail before. The experience of being detained inside of a jail and unable to speak with his friends and family while there were serious felony criminal charges pending against him caused plaintiff to suffer extreme emotional distress and anxiety. Additionally, plaintiff was terrified for the entire time he was unlawfully detained. Plaintiff was forced to appear in Criminal Court on 2 occasions before the DA's Office moved to dismiss and seal all charges brought against plaintiff and all charges were dismissed and sealed in their entirety on November 8, 2018. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted, denied plaintiff the right to due process/ right to a fair trial, and unlawfully searched and seized plaintiff's vehicle in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff PIERRE WOOD is a resident of the state of New York.

3. POLICE OFFICER GREGORY VASQUEZ, Shield No. 21626, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER GREGORY VASQUEZ, Shield No. 21626, was at all times relevant herein, assigned to the 67th Precinct.

5. POLICE OFFICER GREGORY VASQUEZ, Shield No. 21626, is being sued in his individual and official capacity.

6. POLICE OFFICER FLAGUMY VALCOURT, Shield No. 6178, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER FLAGUMY VALCOURT, Shield No. 6178, is and was at all times relevant herein, assigned to the 67th Precinct.

8. POLICE OFFICER FLAGUMY VALCOURT, Shield No. 6178, is being sued in his individual and official capacity.

9. SERGEANT DAVID GRIECO, Shield No. 18061, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT DAVID GRIECO, Shield No. 18061, was at all times relevant herein, assigned to the 67th Precinct.

11. SERGEANT DAVID GRIECO, Shield No. 18061, is being sued in his individual and official capacity

12. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. New York City Police Officers John Does #1-4 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim with the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and a Hearing was held by the City of New York pursuant to General Municipal Law Section 50-h on February 22, 2019.

17. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

18. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

19. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

20. By way of background, on October 23, 2018 plaintiff attended a concert at the Barclay's Center in Brooklyn.

21. The outing to the concert was organized by a student group from plaintiff's college, and many students from his school attended the event.

22. Plaintiff drove to the concert at the Barclay's Center with his friend from school, Martial Amilcar.

23. Plaintiff drove to the concert without incident and enjoyed the concert with his fellow classmates.

24. When the concert was over the people from plaintiff's school who organized the outing attempted to find rides home from the concert for any student from their school that did not have a ride.

25. Plaintiff was asked to drive an individual named Adam Decterin home from the concert because he lived near plaintiff and Martial Amilcar.

26. Although plaintiff did not know Adam Decterin, he agreed to drive him home because he was a college classmate and because it was not out of his way.

27. At approximately 10:30 PM on October 23, 2018 plaintiff, Martial Amilcar, and Adam Decterin got into plaintiff's vehicle to drive home.

28. Plaintiff drove and was seated in the driver seat, Martial Amilcar was seated in the front passenger seat, and Adam Decterin was seated in the back seat immediately behind the driver.

29. Plaintiff lawfully drove the vehicle for approximately 20 minutes without incident.

30. At approximately 11:00 PM on October 23, 2018 plaintiff was lawfully driving in the vicinity of 3109 Clarendon Road when defendants pulled plaintiff's vehicle over without reasonable suspicion or probable cause to believe plaintiff committed a crime or violated the law in any manner.

31. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the police officers have an objective factual basis to suspect that plaintiff committed a crime or violated the law.

32. Nevertheless, the defendant police officers pulled plaintiff over, exited their vehicle, and approached plaintiff's vehicle on either side, with their guns drawn.

33. The defendants told plaintiff that they stopped him because he had Pennsylvania license plates and they wanted to see why he was driving in the area.

34. Plaintiff told the defendant officers that he was driving the passengers in his vehicle home from the concert that they just attended at the Barclay's Center.

35. The officers asked for plaintiff's insurance, registration, and driver's license and plaintiff provided them all to the officer.

36. Plaintiff's vehicle was registered, insured and plaintiff's driver's license was active and valid.

37. Then the officers unlawfully ordered plaintiff to exit the vehicle.

38. Although the defendant police officers did not have a legal basis to order plaintiff to exit the vehicle, plaintiff obeyed the order and stepped out of the vehicle.

39. The officers proceeded to unlawfully search plaintiff without probable cause or any legal basis to search plaintiff.

40. The defendant police officers did not recover any illegal drugs, weapons, or contraband pursuant to their search of plaintiff.

41. Then the defendant officers instructed plaintiff and the passengers of his vehicle to stand in the rear of the vehicle while the officers unlawfully searched the vehicle without probable cause or legal justification.

42. At no time relevant herein did the officers recover any illegal drugs, weapons, or contraband from plaintiff's possession, custody, or control.

43. However, after the officers searched plaintiff's vehicle they unlawfully handcuffed plaintiff and placed him under arrest without informing plaintiff why they were arresting him.

44. Plaintiff and the two occupants in his vehicle were all arrested and transported to the 67th precinct against their will.

45. At the 67th precinct the officers unlawfully searched plaintiff again without probable cause.

46. The defendant officers did not recover any illegal drugs weapons or contraband from plaintiff pursuant to their search of him at the precinct.

47. Plaintiff was unlawfully interrogated at the precinct, outside the presence of an attorney, by the defendants, about whether he had knowledge of any guns that people possessed in the area.

48. The defendants offered to pay plaintiff to work for them and provide them, with information about individuals in the neighborhood who possessed guns.

49. Plaintiff did not have any knowledge about individuals in the neighborhood who possessed guns and could not provide the defendants with the information they were asking for.

50. The unlawful interrogation of plaintiff by defendants that occurred outside the presence of an attorney lasted for approximately 15 minutes.

51. Thereafter, defendants unlawfully photographed, fingerprinted, and detained plaintiff in a holding cell at the 67th precinct until the following morning.

52. Additionally, while plaintiff was detained at the 67th precinct the defendant police officers obtained plaintiff's DNA from him without his consent and without him knowing the defendants were seizing his DNA.

53. The defendant officers offered plaintiff a drink of water and after plaintiff drank the water from a paper cup the defendants recovered the paper cup, removed a sample of plaintiff's DNA from the portion of the cup where plaintiff placed his lips while he was drinking the water, and vouchered the cup.

54. Upon information and belief, plaintiff's DNA is now in a law enforcement database containing the DNA of many individuals, and plaintiff's DNA can now be used by law enforcement as part of their criminal investigations.

55. Given that plaintiff was falsely arrested, the officer certainly should not have been able to seize his DNA and enter it into an NYPD or other law enforcement database.

56. On the morning of October 24, 2018, the defendant police officers transported plaintiff to Kings County Central Booking whereat the unlawful detention of plaintiff continued.

57. Plaintiff was unlawfully detained in several large holding cells with numerous other prisoners at central booking.

58. The other prisoners that plaintiff was detained with at Central Booking had been accused and arrested for a variety of crimes, some of which were violent.

59. The experience of being detained with the other prisoners was terrifying for plaintiff because he had never been in that situation before.

60. Plaintiff was falsely arrested and unlawfully detained for 24 hours and 21 minutes before he was finally arraigned in Kings County Criminal Court.

61. The defendant police officers provided the District Attorney's Office with false, incomplete, and misleading evidence and information regarding their basis for arresting plaintiff and charging him with crimes

62. . Specifically, defendant Sergeant David Grieco falsely alleged that he observed plaintiff in possession of a loaded gun.

63. In fact, the defendant police officer's own factual allegations about what they observed demonstrates that none of the officers observed plaintiff in possession of a loaded gun.

64. The defendant police officers allege that after plaintiff stepped out of the vehicle during the car stop one of the defendants observed Adam Decterin (the individual that plaintiff did not know prior to driving him home from the concert) sitting in the back seat, reach toward the floor of the vehicle, and remove something from his person and place it under the seat in front of him.

65. After the defendant police officer witnessed Adam Decterin hide an object underneath the seat in front of him, defendants immediately removed Adam Decterin from the vehicle and allegedly recovered a gun from the location where Adam Decterin placed the item.

66. Additionally, according to the defendant police officers', Adam Decterin admitted that the gun belonged to him and told the officers that he "found it in the street," and stated to the officers, " [w]hen you pulled us over, I put it under the seat."

67. In fact, defendants only possessed evidence that suggested Adam Decterin was the only person in the vehicle who had possession, custody or control over the gun.

68. Defendants did not make any factual allegations whatsoever that suggest plaintiff was seen in possession of a firearm, that plaintiff made any statements about a firearm, or that plaintiff knew anything about a firearm.

69. Plaintiff was was arrested and charged with possession of a firearm by the defendants even though defendants did not possess any facts or evidence that supported the false allegations made in the Criminal Court Complaint by Sergeant David Grieco he observed plaintiff in possession of a loaded gun.

70. Defendants also falsely alleged that plaintiff's vehicle was uninsured.

71. A criminal prosecution was initiated against plaintiff without probable cause or legal justification, based upon the false allegations made against plaintiff by the police officers.

72. Plaintiff was maliciously prosecuted and denied the right to due process/the right to a fair trial by defendants.

73. On October 24, 2018 at approximately 11:45 PM plaintiff was arraigned and charged with serious felony crimes he did not commit in Kings County Criminal Court.

74. Specifically, plaintiff was charged with One Count of Criminal Possession of a Firearm in the Second Degree (PL 265.03(3)), a class C felony, as well as several fabricated VTL violations.

75. Bail was set at arraignment in the amount of \$5000 secure bond or \$5000 cash.

76. Plaintiff was unable to post bail.

77. Consequently, plaintiff Was remanded into New York City Department of Corrections custody and unlawfully detained at the Brooklyn Detention Center.

78. Plaintiff was detained for an additional 4 days in DOC custody at the Brooklyn Detention Center before he was released from custody.

79. Plaintiff was only released from custody because his criminal defense attorney filed a Writ of Habeas Corpus in Brooklyn Supreme Court alleging that plaintiff was being unlawfully detained and argued that the bail set was excessive and baseless and that there was not probable cause to even charge plaintiff with the crimes he was charged with.

80. Plaintiff's attorney obtained an order for plaintiff to be released from the custody of the Department of Correction pursuant to the Writ of Habeas Corpus filed with the court.

81. Plaintiff was required to make two court appearances in Kings County Criminal Court before the false charges brought against him were dismissed.

82. By letter dated November 1, 2018 from the Kings County District Attorney's Office, plaintiff's defense attorney was advised that the District Attorney's office was advancing plaintiff's case on the calendar to November 8, 2018 because the District Attorney's office intended to move to dismiss all charges brought against plaintiff.

83. On November 8, 2018 all charges pending against plaintiff were dismissed and sealed in their entirety after the District Attorney's Office affirmatively moved to dismiss the case because according to the District Attorney's office they did not have enough evidence to prove the allegations made against plaintiff..

84. In addition to the emotional trauma caused from being unlawfully detained and having a criminal prosecution pending against him with serious felony charges, defendants also unlawfully seized plaintiff's vehicle.

85. Plaintiff did not have access to his vehicle for over a month while the criminal prosecution was pending against him.

86. Plaintiff generally used his vehicle to travel to work and school and not having access to his vehicle for over a month caused him to suffer severe emotional distress and was a serious inconvenience in his life.

87. On October 24, 2018 plaintiff was also fired from his job as a security guard because of the underlying arrest and criminal prosecution caused by defendants in this case.

88. Plaintiff was unemployed for an extended period of time after he was fired from his job and plaintiff seeks damages from defendants to compensate him for the lost income he incurred due to being falsely arrested and maliciously prosecuted by defendants.

89. The criminal prosecution against plaintiff in this case was initiated based upon the officers' false allegations against plaintiff.

90. All of the charges brought against plaintiff were based upon defendants' fabricated allegations against plaintiff.

91. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the defendants possess and objective factual basis to believe plaintiff committed a crime or violated the law in any manner.

92. The defendants denied plaintiff the right to due process/ right to a fair trial and initiated a criminal prosecution against plaintiff without probable cause.

93. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution, but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

94. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, denial of the right to due process/ a fair trial, and unlawful seizure of plaintiff's vehicle by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

95. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

96. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial without probable cause and to have his vehicle unlawfully seized, in violation of plaintiff's right to be free from an unreasonable seizure and denial of due process under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

97. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

99. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

102. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

103. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

105. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

106. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

108. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

109. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

110. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 109 with the same force and effect as if more fully set forth at length herein.

111. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

112. Defendants lacked probable cause to search plaintiff.

113. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

114. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

115. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

116. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

117. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 116 with the same force and effect as if more fully set forth at length herein.

118. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

119. Defendants commenced and continued a criminal proceeding against plaintiff.

120. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

121. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

122. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

123. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

124. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

125. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 124 with the same force and effect as if fully set forth herein.

126. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

127. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

128. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

129. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

130. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

131. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

132. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

133. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligence

134. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 133 with the same force and effect as if more fully set forth at length herein.

135. Defendants owed a duty of care to plaintiff.

136. To the extent defendants claim that they accidentally falsely arrested and emotionally damaged plaintiff while they were placing him under arrest and unintentionally maliciously prosecuted plaintiff, then defendants breached that duty of care by causing physical injury to plaintiff as a result of defendants careless, reckless, negligent, and/or accidental behavior.

137. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

138. All of the foregoing occurred without any fault or provocation by plaintiff.

139. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

140. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

141. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

142. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 141 with the same force and effect as if more fully set forth at length herein.

143. By falsely arresting plaintiff and then fabricating allegations against plaintiff to justify why defendants arrested him, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

144. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

145. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

146. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

147. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress

148. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 147 with the same force and effect as if more fully set forth at length herein.

149. The above-described conduct by falsely arresting plaintiff and then fabricating allegations against plaintiff to justify why defendants arrested him, defendants, each

acting individually and in concert with each other, defendants' conduct was outrageous, atrocious so extreme in degree to go beyond all possible bounds of decency, and utterly intolerable in a civilized community.

150. Defendants' conduct was intentional, wanton and reckless and was done with a total disregard of the risks to plaintiff's health and safety.

151. As a direct and proximate result of the acts alleged above, plaintiff suffered severe emotional distress, humiliation, mental anguish, and physical distress.

152. The acts of defendants alleged above were willful, wanton, flagrant, malicious, oppressive, and performed with a total disregard for plaintiff's health safety and welfare and justify the award of punitive damages.

153. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

154. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

155. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

156. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Failure to Intervene

157. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 156 with the same force and effect as if more fully set forth at length herein.

158. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

159. Defendants failed to intervene to prevent the unlawful conduct described herein.

160. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

161. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

162. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

163. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 162 with the same force and effect as if more fully set forth at length herein.

164. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

JURY DEMAND

165. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Pierre Wood demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 21, 2020

By: /s/

DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 21, 2020

/s/
DAVID M. HAZAN